

Participation Agreement
Korea

Agreement # 4998CM0379
PA # 4916011262

EFFECTIVE DATE OF THIS PARTICIPATION AGREEMENT ("PA"): Upon date last signed by the parties

This PA between IBM Korea ("Buyer") and George P. Johnson Korea ("Supplier") adopts and incorporates by reference all of the terms and conditions of the Base Agreement#4998CM0379 in effect as of the date hereof ("Base Agreement"). This PA automatically incorporates any future amendments to the Base Agreement referenced in this PA, and will be made a part of this PA to the extent that the amendments do not conflict with the terms of this PA.

The parties to this PA agree that purchases and sales of the Deliverables, Products or Services, as defined in the Base Agreement, will be conducted in accordance with, and be subject to, the terms and conditions of this PA, the Base Agreement and any applicable Work Authorizations.

AMENDMENTS: The following terms and conditions amend provisions of the Base Agreement to bring the conduct of the parties' transactions into conformity with local law and practice.

1.0 Choice of Law and Forum

This Base Agreement shall be governed by, and construed in accordance with, the laws of the Republic of Korea. Buyer and Supplier irrevocably submit to the exclusive jurisdiction of the Seoul Central District Court for the purposes of any suit, action or other proceeding arising out of this Base Agreement or any transaction contemplated thereby.

2.0 Prior Communications and Order of Precedence

In the event of any conflict in the terms of the Base Agreement, the order of precedence will be: (i) the quantity, payment and delivery terms of the relevant WA; (ii) the relevant SOW; (iii) this PA; (iv) the Base Agreement; and (v) the remaining terms of the relevant WA.

3.0 Survival

In the event the Base Agreement is terminated, the terms and conditions of the Base Agreement incorporated by reference herein shall survive such termination and remain in effect for purposes of this PA only.

4.0 Warranties

In addition to the representations and warranties in the subsection titled "*Ongoing Warranties*" in the Base Agreement, Supplier represents and warrants:

1. it is familiar with all local laws and regulations pertaining to bribery, corruption and prohibited business practices and has not and will not partake in any actions in relation to the transactions contemplated herein in violation of such laws;
2. it and its Affiliates has not and will not offer, promise or make or agree to make payments or gifts (of money or anything of value) directly or indirectly to anyone for the purpose of influencing or inducing anyone to influence decisions in favor of Buyer;
3. unless expressly disclosed to Buyer in writing prior to the execution of this Agreement, it does not know nor has reason to believe that any of the owners, principals or senior management of Supplier, its Affiliates, or lower tier subcontractors (1) are or were persons acting in an official capacity for or on behalf of a government; or (2) have a familial relationship to persons acting in an official capacity for or on behalf of a government.

5.0 Termination of a SOW or WA

The following clause shall be added into the end of the subsection titled "*Termination of this Base Agreement*":

Notwithstanding the foregoing, Supplier recognizes and agrees that Buyer may immediately terminate this Agreement for Cause by written notice to Supplier in the case that (1) Supplier breaches the Ongoing Warranties pertaining to bribery listed above, or (2) when Buyer reasonably believes such a breach has occurred or is likely to occur. For purposes of the subsection below titled "*Termination of a SOW or WA*" in the Base Agreement, the term Cause shall be deemed to include these events.

6.0 Data Privacy

Supplier shall duly comply with the applicable laws and regulations, including but not limited to the Act on Promotion of Information and Communications Network Utilization and Information Protection, etc., regarding the collection, use, security, and processing of any data relating to an individual that the Buyer may disclose or the Supplier may become aware of in performing this Agreement. Buyer may, upon reasonable notice, audit and verify Supplier's compliance with the provisions of this subsection. When Supplier's service attains the objectives of being provided with the personal information, Supplier shall

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promptly dispose of the relevant personal information.

The two companies have signed a statement in any copy of the work (ie, photo copy, fax this, the digital scan) is also considered to be the original of the contract documents.

IBM ACCEPTED AND AGREED.

By:

Buyer Signature IBM Korea Inc. Date _____
Printed Name Jeffrey Allen Rhoda
Title & Organization Representative Director
10 GukJegeumyung-ro
Youngdeungpo-gu Seoul
Buyer Address: _____

2016 09. 12



Signature of Supplier continues on the next page.



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SUPPLIER ACCEPTED AND AGREED.

By:

September 20 2016

Supplier Signature

Date

DONG HEE KIM

Printed Name

MANAGING DIRECTOR

Title & Organization

Supplier Address:

1 2 0 - 8 4 - 0 6 5 8 8

7F, Dongnam Bldg., 221 Dosan-daero,
Gangnam-gu, Seoul, Korea

George P. Johnson Korea LLC

TEL: 82-2-501-1866 FAX: 82-2-501-1887

